



EVL1 — Introduction to Evidence and Proof

Module 2 — Relevancy and Admissibility

Lesson 2: Admissibility

Student Lesson Notes

WHAT IS ADMISSIBILITY?

Opening Scenario

A murder suspect is arrested in Uganda. During interrogation at the police station, police officers beat him severely until he confesses to the killing. The confession is written down and signed. When the case reaches the High Court, the prosecution wants to use this confession as evidence.

Is the confession relevant? Yes — it directly addresses a fact in issue, namely whether the accused committed the murder.

But should the court admit it? This is where admissibility comes in. Even though the confession is relevant, the law may still exclude it. A confession obtained through torture violates Article 24 of the Constitution of Uganda 1995 and the principles governing confessions under the Evidence Act Cap. 8.

Admissibility: The quality of evidence that makes it legally receivable by a court. Evidence is admissible if it satisfies all the legal requirements that allow it to be presented to and considered by the court.

The Two-Gate System

Think of the process of getting evidence before a court as passing through two gates in sequence:

- Gate 1 — Relevancy: Is this evidence logically connected to the matter in issue? If no — excluded. If yes — proceed to Gate 2.
- Gate 2 — Admissibility: Does this evidence satisfy all legal requirements for reception by the court? If no — excluded. If yes — admitted.

Only evidence that passes BOTH gates reaches the court and can be used in reaching a decision. A piece of evidence can be relevant but still be excluded at the admissibility gate.

Common Grounds for Excluding Relevant Evidence

Illegally obtained evidence: Confessions obtained through torture, coercion, or threats are inadmissible under Article 24 of the Constitution of Uganda 1995 and the Evidence Act Cap. 8.

Hearsay: A statement made outside court by a person who is not testifying cannot generally be admitted as evidence of the truth of its contents. Section 30 Evidence Act Cap. 8 provides specific exceptions.

Privilege: Certain communications are protected from disclosure even if relevant — legal professional privilege, spousal privilege, and state privilege.

Opinion evidence: As a general rule, witnesses give evidence of facts they personally observed, not their opinions. Exception: expert witnesses with specialised knowledge may give opinion evidence.

Character evidence: Evidence of a person's general bad character is generally inadmissible to prove they committed the act in question — risks decision based on who the person is rather than what they did.

Stanbic Bank Uganda Ltd v Uganda Crocs Ltd *Civil Appeal No. 4 of 2004, Court of Appeal* — Documents must be properly authenticated before they can be admitted as evidence — relevancy alone is not sufficient.

Akbar Hussein Godi v Uganda *Criminal Appeal No. 3 of 2013, Supreme Court* — Admissibility requires proper evidential foundations — the court examined admissibility requirements for identification evidence.

RELEVANCY VS ADMISSIBILITY — THE KEY DISTINCTION

The Classic Statement

All admissible evidence is relevant, but not all relevant evidence is admissible.

This statement moves in one direction only. Admissibility requires relevancy — you cannot have admissible evidence that is not relevant. But relevancy does not guarantee admissibility — you can have relevant evidence that is still excluded.

Illustrations from Ugandan Practice

Illustration 1 — The Beaten Confession

Relevancy: the confession directly addresses the fact in issue — whether the accused committed murder. It is relevant. It makes guilt more probable.

Admissibility: the confession was obtained through torture in violation of Article 24 of the Constitution of Uganda 1995. The Evidence Act Cap. 8 requires confessions to be voluntary. This confession is inadmissible.

Result: relevant but NOT admissible — excluded.

Illustration 2 — A Dying Declaration

A stabbing victim in Mulago Hospital whispers the name of his attacker to a nurse before dying.

Relevancy: the statement identifies the alleged attacker and is directly relevant to the fact in issue.

Admissibility: dying declarations fall within the exception to the hearsay rule under Section 30(a) of the Evidence Act Cap. 8.

UGANDA-SPECIFIC POINT: Unlike the old English common law, the declarant does NOT need to be under a settled expectation of death at the time of making the statement for a dying declaration to be admissible under Section 30(a) Evidence Act Cap. 8.

Result: relevant AND admissible.

Illustration 3 — Previous Conviction for Fraud

In a fraud trial, the prosecution wants to introduce evidence that the accused was convicted of fraud five years ago.

Relevancy: logically relevant — makes it more probable the accused committed fraud again.

Admissibility: general bad character evidence is not automatically admissible. Specific rules govern when previous convictions can be introduced. Unless a specific exception applies, this evidence will be excluded.

Result: relevant but inadmissible — excluded.

Why This Distinction Matters for Advocates

When opposing evidence, an advocate must decide whether to object on relevancy grounds or admissibility grounds:

- Relevancy objection: this fact has no logical connection to this case and should not be heard at all.
- Admissibility objection: this fact may be relevant but was obtained or presented in a way the law does not permit.

Confusing these arguments weakens your case and creates avoidable confusion before the court.

CONSEQUENCES OF INADMISSIBLE EVIDENCE

Effect of Exclusion on the Offering Party

When a court rules that evidence is inadmissible, that evidence is removed from consideration entirely. The court proceeds to decide the case as though that evidence was never presented.

In a criminal case, if the prosecution's main evidence — such as a confession — is excluded on admissibility grounds, the prosecution must prove its case using whatever other evidence remains. If no other sufficient evidence exists, the accused may be acquitted not because they are innocent but because the available evidence cannot legally be used.

Admissibility vs Weight

Admissibility: Determines whether evidence gets before the court at all — the gateway question.

Weight: Determines how much significance the court gives to evidence that has been admitted — evaluated after admission.

A piece of evidence may be admissible but carry very little weight — for example, the uncorroborated testimony of a single witness who was far from the scene. An advocate who confuses admissibility with weight makes a fundamental error.

- Wrong strategy: objecting to the admissibility of evidence that is clearly admissible — wastes the court's time.
- Right strategy: accept admission but challenge the weight through cross-examination and submissions.

Wrongly Admitted Evidence — Grounds for Appeal

If a trial court wrongly admits evidence that should have been excluded, this is an error of adjectival law that can be raised as a ground of appeal. The appellate court will examine whether the error affected the outcome of the case.

Not every admissibility error leads to a successful appeal. If the remaining admissible evidence was sufficient to support the decision even without the wrongly admitted evidence, the appellate court may uphold the decision despite the error. This is sometimes called the proviso.

DISCRETION OF THE COURT IN ADMISSIBILITY

Does the Court Have Discretion to Exclude Admissible Evidence?

In English law, Section 78 of the Police and Criminal Evidence Act 1984 gives courts express power to exclude evidence whose admission would adversely affect the fairness of proceedings. However, the Police and Criminal Evidence Act 1984 is English legislation and does NOT apply in Uganda.

The Position in Uganda

In Uganda, the primary source of admissibility rules is the Evidence Act Cap. 8. However, the Constitution of Uganda 1995 gives courts a constitutionally rooted power — arguably a duty — to exclude evidence obtained in violation of constitutional rights.

- Article 27 (right to privacy) — evidence obtained through an unlawful search may be excluded.
- Article 24 (prohibition of torture) — confessions obtained through torture must be excluded.
- Article 50 (enforcement of rights) — exclusion of unconstitutionally obtained evidence is one form of constitutional redress.

Uganda v Doyi Wabwire Kyoyo (1976) HCB 212 — Established foundational procedural safeguards magistrates must follow when taking confessions — demonstrating Ugandan courts' commitment to careful scrutiny of admissibility rather than automatic admission.

Prejudicial Effect vs Probative Value

Ugandan courts recognise that evidence whose prejudicial effect substantially outweighs its probative value should be treated with caution — particularly similar fact evidence under Section 15 of the Evidence Act Cap. 8 and confessions where courts require careful scrutiny of the circumstances in which they were obtained.

Practical Lesson for Advocates

When challenging evidence, always consider both the statutory admissibility rules under the Evidence Act Cap. 8 AND the constitutional dimension. If evidence was obtained in violation of a constitutional right, the constitutional argument may be stronger than a purely statutory one.

LESSON SUMMARY — KEY POINTS

- ✓ Admissibility is the quality that makes evidence legally receivable by a court
- ✓ Not all relevant evidence is admissible — relevancy is necessary but not sufficient
- ✓ The two-gate system: relevancy first (Sections 5–16 Evidence Act Cap. 8), admissibility second
- ✓ Common grounds for excluding relevant evidence: torture/illegality, hearsay, privilege, improper opinion, character evidence
- ✓ Admissibility and weight are different — admissibility is whether evidence gets before the court; weight is how much the court gives it
- ✓ Relevancy objection: no logical connection to the case. Admissibility objection: the method of obtaining or presenting it violates the law
- ✓ The Police and Criminal Evidence Act 1984 (PACE) is English law and does NOT apply in Uganda
- ✓ Ugandan courts derive exclusionary power from the Constitution of Uganda 1995 and Evidence Act Cap. 8
- ✓ Dying declarations under Section 30(a) do NOT require the declarant to be under expectation of death in Uganda — unlike the old English position

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. State the classic statement of the relationship between relevancy and admissibility.
2. A confession is obtained through torture. Is it relevant? Is it admissible? Explain using Article 24 of the Constitution of Uganda 1995.
3. What is the difference between admissibility and weight of evidence? Give a practical example.
4. Under which constitutional provision can a Ugandan court exclude evidence obtained through an unlawful search?
5. State the Uganda-specific rule on dying declarations under Section 30(a) of the Evidence Act Cap. 8 that differs from the old English common law position.